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State GOP is hammering Democrats over fentanyl

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SACRAMENTO — California Republicans have found an issue to use as their cudgel against the Democratic majority. For the past month, they have wielded it in nearly every policy debate in the Capitol.

When the Legislature welcomed the expelled-then-reinstated Democratic Tennessee state Rep. Justin Jones in May, Assembly Republican James Gallagher of Yuba City invoked fentanyl to rail against oneparty rule.

During a recent debate over concealed carry permitting, Sen. Janet Nguyen, R-Huntington Beach, raised Democrats' alleged failures on fentanyl.

Republicans even dragged fentanyl into a discussion about Skittles. A bill from Assemblyman Jesse Gabriel, D-Woodland Hills, would ban chemicals used in food products, including the chewy, fruit-flavored candy.

"It's pretty tough to claim you're protecting our children by taking away their candy yet not doing everything in your power to help get lethal fentanyl pills off the street that are poisoning children and destroying families," the state GOP wrote in a May email newsletter.

Now, a group of Republicans and a handful of Democrats are turning a failed fentanyl bill into a constitutional amendment they want to put to voters. It would require judges to warn drug dealers they could face homicide charges if they sell counterfeit drugs that kill people.

The GOP will likely never get exactly what it wants to address the state's fentanyl crisis. But what it does have is a new vehicle for conveying a traditional Republican message to moderate and independent suburban voters — that Democrats are soft on crime.

"Republicans aren't going to win right now on issues like abortion or guns, generally, in these suburban districts," said Matt Rexroad, a Republican political consultant. "So here's an issue that works for them very well. They're very clear on it, and it's not going to go away. It's on people's minds."

Republicans' new tough on crime issue

Suburban voters view the problem with increasing urgency, which makes it possible for Republicans to win over lawmakers who represent purple districts. However, the GOP still has limited power, and progressive Democrats insist the party is making more noise than actual headway.

Fentanyl is a cheap, powerful synthetic opioid that dealers cut into other drugs to increase their potency while reducing their own costs. Customers who might think they are buying a different substance end up ingesting a fatal dose of fentanyl that has been disguised and marketed as another drug.

More than 7,100 people died of opioid overdoses in 2021, and 83% of those fatalities were related to fentanyl, according to the California Department of Public Health. Accidental fentanyl overdoses affect habitual drug users, as well as young people having initial experiences with opioids.

Republicans and some moderate Democrats want to see the state crack down on fentanyl dealers, which is at odds with California's push to alleviate prison overcrowding and reduce penalties for drug crimes.

For the past 15 years, the state has been under a federal court order to cut its prison population. Lawmakers and

voters have curbed sentencing for lower level drug offenses and moved some inmates from state prisons to county jails.

It means Democratic leaders — and lawmakers in safely blue districts — have consistently pushed back against stronger criminal penalties for fentanyl dealers. Instead, they promote community-based programs and recall the failed war on drugs of the 1980s and 1990s, which resulted in the mass incarceration of Black and brown people, even as overdoses continued.

As prisons have become less overcrowded, Republicans have begun to challenge policies that reduce sentencing for drug offenses, saying they have caused crime to increase. Although violent and property crimes rates were up in 2021, both have stayed "relatively low" since hitting peaks in the 1990s, according to the Public Policy Institute of California.

Republicans have reserved special ire for Assemblyman Reggie Jones-Sawyer, D-Los Angeles, who chairs the Assembly Public Safety Committee. This spring, they claimed he was refusing to hear a handful of fentanyl-related bills, some of which came from Democratic lawmakers.

He eventually held a special meeting in April to consider the bills, although almost none of the criminal penalty-related measures advanced.

Democrats divided on fentanyl

Andrew Acosta, a Democratic political consultant, said the issue is one that divides Democrats based on how blue their districts are.

"There's clearly folks in very safe, uber-progressive areas who will never touch this with a 10-foot pole," Acosta said. "But there's other folks, maybe folks in the Valley and in the Inland Empire, who would say, 'Yeah, this is something I'm going to be supportive of.'"

For example, Jones-Sawyer and Assemblyman Isaac Bryan, D-Los Angeles — two members who have been vocal about their opposition to harsh drug crime penalties — represent overwhelmingly blue districts, according to February data from the Secretary of State's Office.

Nearly 64% of voters in Jones-Sawyer's District 57 are registered Democrats, while just 6.55% are Republicans. More than 65% of voters in Bryan's District 55 are Democrats while about 8.5% are Republicans.

On the moderate side, Assemblywoman Cottie Petrie-Norris, D-Irvine, and Assemblyman Brian Maienschein, D-San Diego, both presented bills at the April Public Safety Committee hearing that would have created crimes or increased penalties related to fentanyl-dealing.

About 40% of voters in Petrie-Norris's District 73 are registered Democrats, while nearly 27% are Republicans. In 2022, Maienschein narrowly won re-election in his District 76, where nearly 38% of voters are Democrats and about 31% are Republicans.

A fentanyl constitutional amendment

As the legislative session reaches crunch time, Republicans are considering new ways to pursue their fentanyl proposals.

Their latest play is a constitutional amendment that would send a measure called Alexandra's Law to voters. The bill is named after Alexandra Capelouto, a 20-year-old woman from Temecula who died of an accidental overdose after unknowingly ingesting fentanyl.

Sen. Tom Umberg, D-Santa Ana, authored the bill, which requires judges to warn dealers about potential homicide

charges that could result from knowingly selling fentanyl that kills people.

The measure failed to advance from the Senate Public Safety Committee in April. As a result, Assemblywoman Diane Dixon, R-Newport Beach, authored Assembly Constitutional Amendment 12, which would require a similar warning.

Republican leaders are confident the public is on their side when it comes to policies like ACA 12.

"You can't have an ordered, safe society if you don't have rules," Gallagher said. "And I think a lot of people are seeing that now. Are they becoming Republicans? I don't know if they're becoming Republicans, but I think they're agreeing with us on issues, or they're agreeing with us on policy. And I think that is resonating with independents and moderate Democrats."

Assemblyman Matt Haney, D-San Francisco, chairs a Select Committee on Fentanyl, Opioid Addiction, and Overdose Prevention. He called Republicans' vocal stances on fentanyl "background noise," because they "don't have the power to stop bills or pass bills."

"The Republicans are focused, it seems, mainly on a handful of bills, most of which they didn't author, that would have extended consequences or punishment for promoting lower-level fentanyl dealing," Haney said. "That may be a part of the solution and part of the response, but we have a lot more work to do."

Acosta, the Democratic consultant, said Republicans' focus on fentanyl is the party "playing ball with the small tools they have available."

"Is there enough behind this (that) actual real voters have an understanding of this? No," Acosta said. "And are they going to get enough to get this on the ballot? I would be surprised if they were able to pull this off. The Democratic majorities are such that it would be really tough for them to get over the hurdle."

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